

## 22STCV19686 22STCV19686

County: los-angeles

Division: Civil Law and Motion

Department: 11

Hearing date: 2026-08-17

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Case Number: 22STCV19686 Hearing Date: August 17, 2026 Dept: 11

Estate of Julie Arnoff (22STCV19686)

Tentative Ruling Re: Petition  
for Approval of Minor's Compromise

Date: 8/17/26

Time: 11:00 am

Petitioner: Duke Choi

Claimant: Ellis Jia Choi

Opposing  
Party: None

Department: 11

Judge: Bruce G. Iwasaki

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### TENTATIVE RULING

Duke  
Choi's petition for approval of minor's compromise is granted.

During

oral arguments, the Court will ask the attorney to address the annuity payment schedule, particularly, future Court approval of the scheduled payments.

## BACKGROUND

This case concerns alleged exposures to toxins at a residential complex.

Here, Duke Choi moves, on behalf of his minor child, Ellis Jia Choi, for approval of Ellis's settlement with Defendants Fifteen Group Capital LLC, Art Colony Property, LLC, The Center for Toxicology and Environmental Health, LLC, FPI Management, Inc., Rogelio Navar, and Marks Sanders.

## APPLICABLE LAW

“An enforceable settlement of a minor's claim or that of a person lacking the capacity to make decisions or a person for whom a conservator has been appointed can only be consummated with court approval.” (Weil & Brown, Cal. Practice Guide: Civ. Procedure Before Trial (The Rutter Group 2026) ¶ 12:572.)

“[A] petition for approval must be presented to the court. Until it is granted (signed), there is no final settlement, and any settlement agreement therefore is voidable.” (Ibid., emphasis in original.)

“The petition must be executed by counsel and must be verified by the petitioner under penalty of perjury.” (Id. at ¶ 12:574.5.) It “must contain a full disclosure of all information that has ‘any bearing on the reasonableness’ of the compromise or the covenant not to sue.” (Ibid.) And it “must be prepared on mandatory Judicial Council form MC-350[.]” (Ibid.)

If the petitioner has been represented or assisted by an attorney in preparing the petition to compromise the claim or in any other respect with regard to the claim, the petition must disclose the following information:

- The attorney's name, state bar number, law firm, if any, and business address;
- Whether the attorney became involved with the petition, directly or indirectly, at the instance of any party against whom the claim is asserted or of any party's insurance carrier;
- Whether the attorney represents or is employed by any other party or any insurance carrier in the matter;
- Whether the attorney has received any attorney fees or other compensation for services provided in connection with the claim giving rise to the petition or with preparation of the petition, and, if so, the amounts and the identity of the person who paid the fees or other compensation;
- If the attorney has not received any attorney fees or other compensation for services provided in connection with the claim giving rise to the petition or with preparation of the petition, whether the attorney expects to receive any fees or other compensation for these services, and, if so, the amounts and identity of the person who is expected to pay the fees or other compensation; and
- The terms of any agreement between the petitioner and the attorney.

(Id. at ¶ 12:574.10, citation omitted.)

Unless the court has approved the attorney's fee agreement in advance, the court must determine a reasonable fee based on all the circumstances of the case and may consider the following nonexclusive factors:

- The circumstances of the minor or disabled person;
- The amount of the fee in proportion to the value of the services;

- The novelty and difficulty of the issues involved and the skill required by the attorney;
- The amount involved and the results obtained;
- The time limits or other constraints imposed under the circumstances;
- The nature and length of the professional relationship between the attorney and the representative of the minor or disabled person;
- The experience, reputation and ability of the attorneys;
- The time and work required;
- The informed consent of the representative of the minor or disabled person to the fee;
- The relative sophistication of the attorney and the client;
- The likelihood that the attorney's acceptance of the case would preclude other employment;
- Whether the fee is fixed, hourly or contingent;
- If a contingent fee, the risk borne by the attorney, the costs advanced by the attorney, and the delay in payment of fees and reimbursement of costs;
- Any statutory requirements for representation agreements that may be applicable.

(Id. at ¶ 12:576, citation omitted.)

## DISCUSSION

### Settlement Terms

\*

Gross settlement = \$97,000.00.

\*

Attorney fees to be paid from the gross settlement = \$24,250.00 (25% of the gross settlement).

\*

Attorney costs to be paid from the gross settlement = \$0.00.

\*

Medical expenses to be paid from the gross settlement = \$0.00.

\*

Net settlement = \$72,750.00.

\* The net settlement will be invested in a single-premium deferred annuity operated by Pacific Life & Annuity Services, Inc. Five payments will be made to Ellis pursuant to an agreed-to schedule.

### Analysis

With one potential caveat, the Court finds that the petition should be granted because:

\* This is a complex toxic-exposure case.

\* The case involved novel and difficult issues.

\* There are 25 Plaintiffs total. (See Petition, Attachment 11(b)(3).)

\* The global settlement amount is \$2,425,000.00. (See id. at Attachment 11(b)(6).)

\* Ellis is receiving an equal 1/25th share of the global settlement ( $\$2,425,000.00 \div 25 = \$97,000.00$ ). (See ibid.)

\* Currently, Ellis does not have any medical expenses. (See id. at § 12.)

\* “There are no statutory or contractual liens for payment of [Ellis’s] medical expenses.” (Id. at § 12(5)(a)(i).)

\* Anticipated future medical expenses are merely based on a fear of future harms. (See id. at § 8.c.)

\* Plaintiffs’ counsel “did not become concerned with this matter, directly or indirectly, at the instance of a party against whom the claim is asserted or a party’s insurance carrier.” (Id. at § 17.d.)

\* The retainer agreement calls for Plaintiffs’ counsel to receive attorney fees totaling 25% of the gross settlement. (See id. at Attachments 13a, 17a.)

\* The 25% rate is a highly reasonable rate for complex cases in Los Angeles County and for the services provided by Plaintiffs’ counsel.

\* Although Plaintiffs’ counsel is representing the other Plaintiffs and will be receiving attorney fees from their settlements, the Court’s understanding is that those fees will be based on the same reasonable 25% rate that Ellis is being charged.

\* The parties agreed to the annuity payment schedule. (See id. at Attachment 18b(3).)

The potential caveat concerns Court approval of the annuity payments. It is unclear whether the parties intend to come to the Court for review prior to each scheduled payment. Attachment 18b(3) provides for five installments and does not mention court approval. At the hearing, the Court will ask the attorneys to clarify the parties' expectation on this matter.

The petition is otherwise granted.